

Introductory Lawyering Skills

September 4, 2026

What we're hoping to
help you achieve

- familiarity and ability to work analytically with legal sources within the Common Law regime
- thoughtful consideration of the impact of worldviews/perspectives on how the law and legal processes are shaped/critiqued
- ability to conduct and apply solid research skills
- competency with drafting core legal documents
- familiarity with oral advocacy

- a beginning comfort level with client engagement/interviewing
- consideration of how different lawyering skills impact access to justice (including a focus on Human Rights laws/processes)
- Identification of professional/ethical challenges and opportunities (including **use of generative AI**) and how to respond effectively
- **an introduction to working collaboratively in a simulated legal organization setting**

More about what we are hoping to help you achieve

Where we
hope to
achieve
these goals

- in-person plenary lectures in the Moot Court
- occasional Zoom plenary lectures (the first one is next week!)
- weekly tutorials (see eClass for your tutorial allocations)
- SIMple Platform (winter term)

Expectations as we start the term

- That you have completed the Osgoode Zero L program
- That you feel free to reach out to me with questions (but that you read the course outline first to make sure the info isn't there :)
- That you anticipate frequent “deliverables”

- See “Evaluation at a Glance” on page 5 of the course outline, as well as this excerpt from page 5:
- Failure to complete any of the quizzes or assignments (this does not include tutorials) will lead to a failing mark in the course. Failure to achieve a grade of at least 65% on each graded assignment (this does not include tutorials or the final test) will also lead to a failing grade in the course. However, students who do not achieve a grade of at least 65% (prior to any lateness deduction) on any assignment (including quizzes and law firm group assignments) will have the opportunity to resubmit the assignment in order to achieve a 65% grade. If, on the resubmit, a student receives a grade higher than 65%, their recorded grade will be 65%. Any original lateness deduction will be applied to the resubmitted assignment. The goal is simply to ensure that the quality of the work has achieved a passing level.

More about grading

For ILS grading purposes, your peers are the **members of your ILS tutorial group**. The grading will follow the grading protocol for courses with 30 students or fewer. This protocol differs from the large class grading profile and stipulates that “The median grade awarded in the class must be either a B+ or B.”

Let's turn to
substance

Review:

- Common Law system
- Canadian Court structure

Introduce:

- Human Rights Law in Ontario
- Finding and Reading Cases (prep for Tutorial)

- Common Law
- Civil Law
- Indigenous & Aboriginal Laws
- International Law

Legal Systems – this is a
brief review of Zero L
content

Canada enjoys a unique interplay



Key Sources of Law

- *Constitution*
- *Legislation*
- *Case law*

Stare Decisis

Common Law

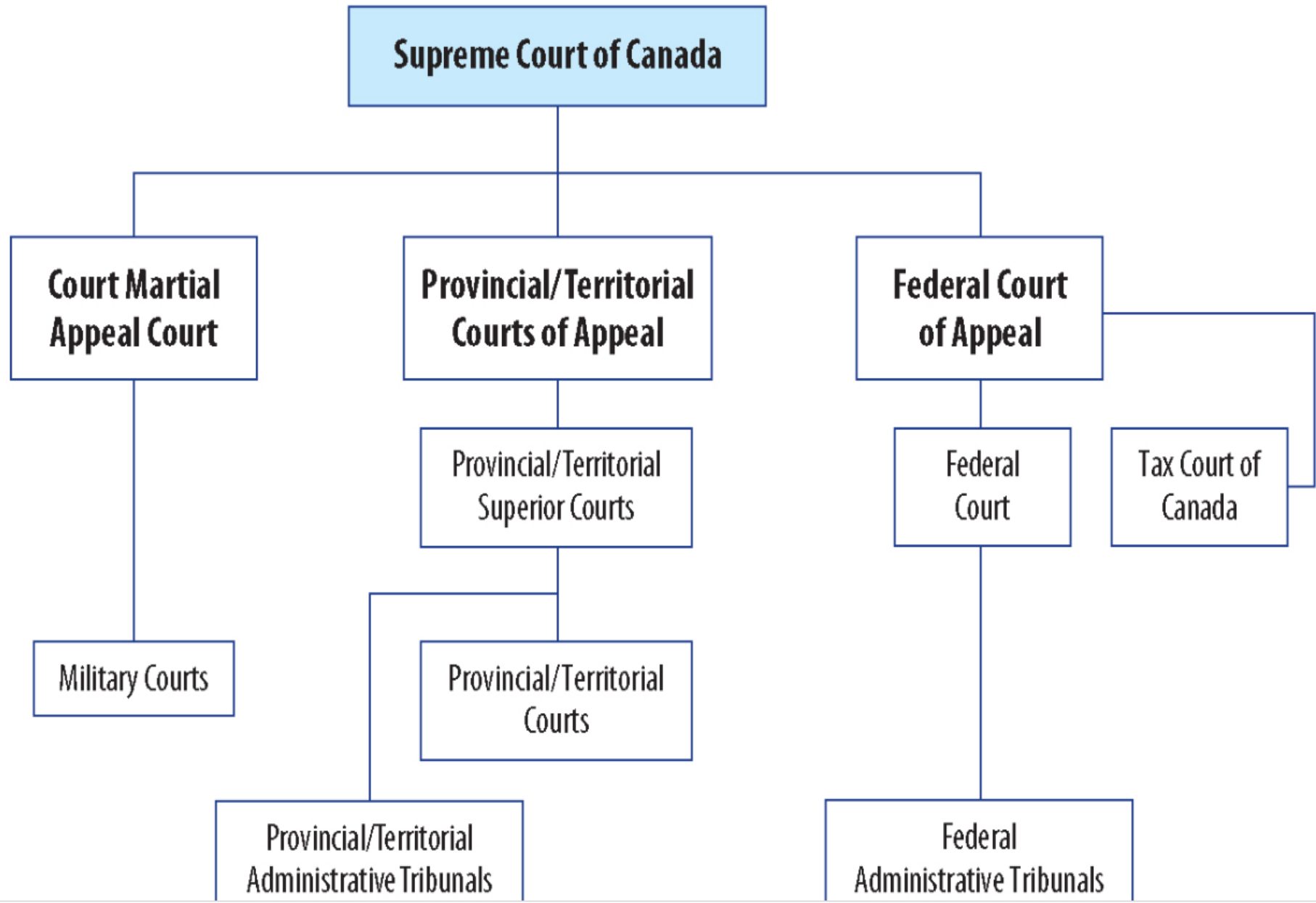
System of *stare decisis*

- means “to stand by things decided”
- legal principle of precedents

Two types of precedent:

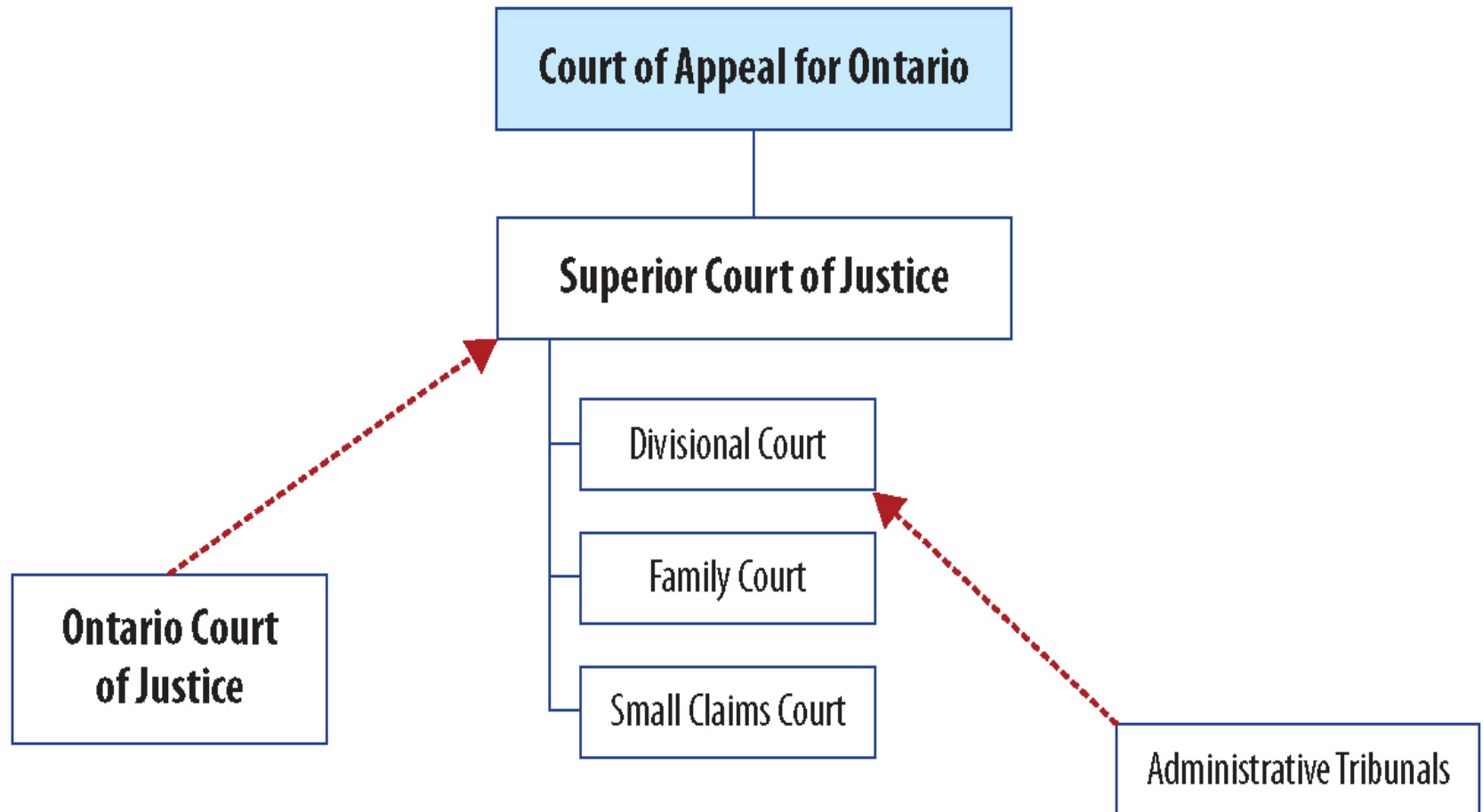
Binding & Persuasive

General Canadian Court Structure



Ontario Court Structure

ONTARIO'S COURTS



Trivia Qs!

- ☐ How do you read the “v” in the following case name: *Brown v White*?
- ☐ If you bring a civil (i.e. non-criminal) claim before the court, what title is assigned to you?
- ☐ Who is *R* in *R v Truscott*? (Assume the decision was rendered in 2010) Now assume it was rendered in 2025
- ☐ What is a cause of action?
- ☐ Who or what is a litigation guardian?
- ☐ In which court would you start a breach of contract claim for \$40,000 against a local contractor?
- ☐ Where are Human Rights cases in Ontario initially heard?



Overview and Purpose of the Ontario *Human Rights Code*



1962 –
Original
Version
Check out
the current
version [here](#)

CHAPTER 93

An Act to establish the Ontario Code of Human Rights and to provide for its Administration

*Assented to March 30th, 1962
Session Prorogued April 18th, 1962*

WHEREAS recognition of the inherent dignity and the Preamble
equal and inalienable rights of all members of the human
family is the foundation of freedom, justice and peace in the
world and is in accord with the Universal Declaration of
Human Rights as proclaimed by the United Nations;

AND WHEREAS it is public policy in Ontario that every
person is free and equal in dignity and rights without regard
to race, creed, colour, nationality, ancestry or place of origin;

What about
Federal
Human
Rights?

Core goals and supremacy of the Ontario Human Rights Code

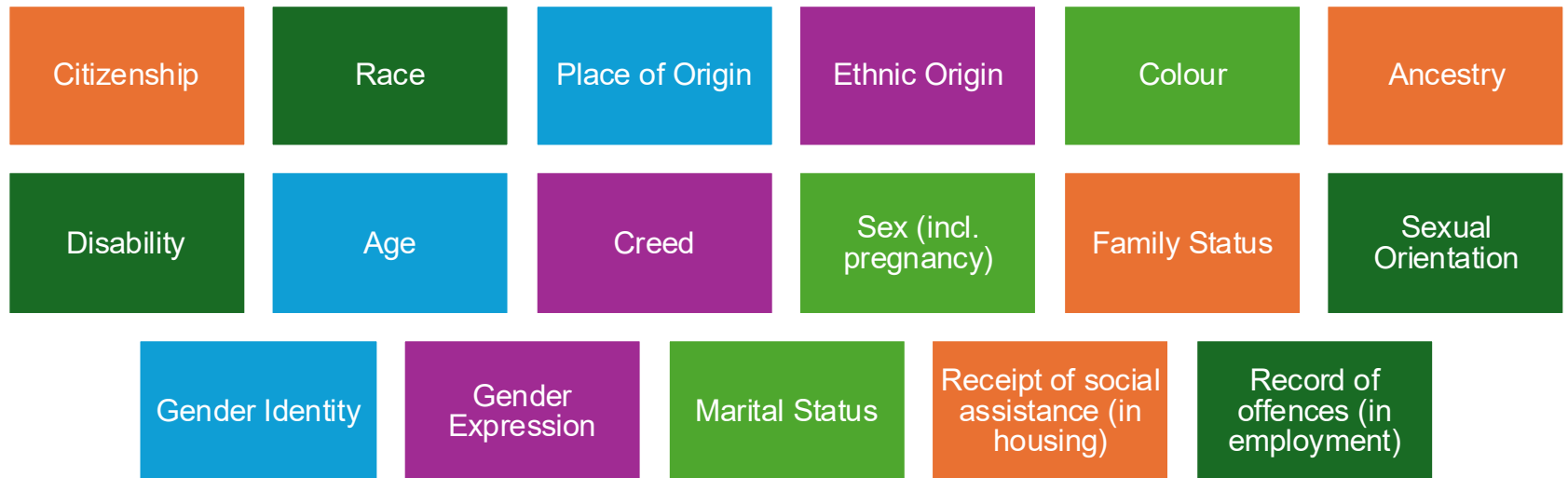
Core Goal of the Code

The Code ensures equal rights and opportunities without discrimination in jobs, housing, membership in unions/professional associations, contracts and services.

Supremacy of the Code

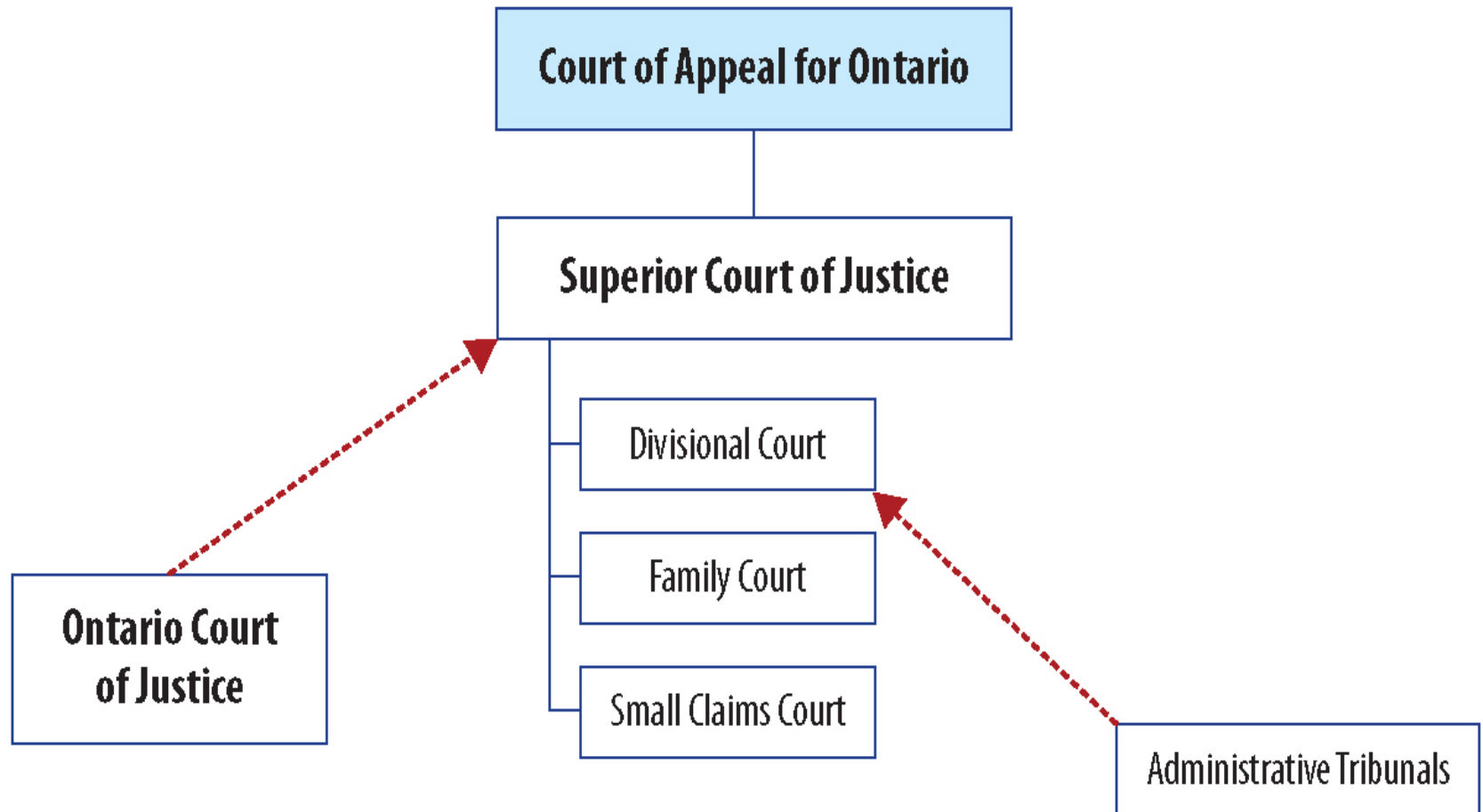
The Code takes priority over other Ontario laws and is interpreted broadly to protect human rights.

17 Protected grounds



Ontario Court Structure

ONTARIO'S COURTS



Criteria for establishing discrimination



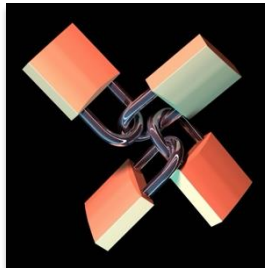
Protected Characteristic

Claimants must have a characteristic protected by law such as race or gender.



Adverse Treatment or Impact

Claimants must have experienced negative treatment in areas like housing, employment, or services.



Factor related to Discrimination

The protected characteristic must be shown as a factor in the adverse treatment or impact.

Types of discrimination: direct, indirect, constructive

Direct Discrimination

Direct discrimination happens when a person acts with clear bias causing unfair treatment based on personal traits.

Indirect Discrimination

Indirect discrimination occurs when discriminatory actions are carried out through others, often by instructions or policies.

Constructive Discrimination (also called “adverse impact”)

Constructive discrimination is unintentional, caused by rules or practices that result in unequal treatment of certain groups.

1

Question 1

A landlord personally decides not to rent an apartment to a couple because they are a same-sex couple. What type of discrimination is this?

A

Direct discrimination

B

Indirect discrimination

C

Constructive discrimination

D

Not discrimination under the Code

2

Question 2

A company owner tells her hiring manager, “Don’t hire anyone from that neighbourhood — they’re all troublemakers,” knowing this will screen out a particular ethnic group. The hiring manager follows these instructions. What type of discrimination has occurred, and who can be named in a claim?

A

Constructive discrimination; only the hiring manager can be named

B

Indirect discrimination; both the owner and the hiring manager can be named

C

Direct discrimination; only the owner can be named

D

No discrimination, since the policy doesn’t explicitly mention ethnicity

3

Question 3

A fitness club requires all instructors to work rotating weekend shifts with no exceptions. The rule wasn't designed with any group in mind, but it ends up excluding observant employees whose religion requires them to refrain from work on a specific day each weekend. What type of discrimination could this be, and what matters most in the analysis?

A

Direct discrimination; intent to exclude religious employees must be proven

B

Indirect discrimination; the club must show it used a third party

C

Constructive discrimination; the focus is on the rule's effect, not the club's intent

D

Not discrimination, since the rule applies equally to everyone

4

Question 4

Which statement correctly distinguishes “indirect” discrimination from “constructive” discrimination as those terms are used under the Ontario Human Rights Code?

A

Indirect discrimination involves a facially neutral rule with an unequal effect; constructive discrimination involves an intermediary carrying out the act

B

Indirect discrimination involves discrimination carried out through another person; constructive discrimination involves a facially neutral rule or requirement with a discriminatory effect

C

The two terms are legally identical under the Code and can be used interchangeably in any context

D

Indirect discrimination requires proof of intent; constructive discrimination does not exist under Ontario law

Duty to accommodate

Sometimes it is necessary to treat someone differently to avoid discrimination (adverse impact)

Employers, landlords, and service providers may have to change policies or physical spaces so that everyone can be included

This obligation extends to the point of **undue hardship**



□ **Role and authority of Ontario Human Rights Commission(OHRC) Policies**

Guidance and Standards

OHRC publishes human rights policies to guide Code interpretation and set compliance standards.

Tribunal Consideration

The Human Rights Tribunal of Ontario considers OHRC policies during proceedings when requested by parties.

Judicial Deference

Courts and Tribunal apply OHRC policies with great deference, quoting them in decisions.

Finding Cases (Preliminary Information)

Can LII – *an open-source platform available for free access*

Lexis (Use this sign up link)

Westlaw (York Wide License – *your user key is required to activate a personalized account. You will get an email*)

Now – let's look at Knauff v HRT0

Case Briefing - Definition & Purposes

- **Definition** - Summary of the factual & legal elements of a case
- **Purposes:**
 - Assists in Digesting Cases Read (Assigned or Researched)
 - Pre-cursor to synthesizing several cases to reach a set of legal principles in order to solve a problem

Case Briefing Elements

- ☐ Style of Cause and Citation
- ☐ Procedural History
- ☐ Facts
- ☐ Issue(s)
- ☐ Decision
- ☐ Reasons
- ☐ Ratio
- ☐ Notes (Optional)

Style of Cause and Citation

Examples

- *Ontario Human Rights Commission v Simpsons-Sears*, 1985 CanLII 18 (SCC).
- *R v Brown*, 2011 ONSC 3.

Case Briefing Elements (Cont'd)

Procedural History

Example

This is an appeal by the plaintiff to the Ontario Court of Appeal from the trial decision of the Ontario Superior Court of Justice. The Superior Court of Justice dismissed the plaintiff's claim.

Case Briefing Elements (Cont'd)

Facts:

- Must be Material
- Ask: Who? To Whom? What?
Where? When? How?
- Consider whether the decision
would have been the same had
the fact not existed

Case Briefing Elements (Cont'd)

Issue(s):

- What is the legal question the court must decide?
- There can be more than one issue.
- Example: Can discrimination be established under the Ontario *Human Rights Code* absent proof of an employer's intent to discriminate?

Case Briefing
Elements
(Cont'd)

Decision

Examples

- Appeal denied: Court ruled in favour of the Plaintiff.
- Action was dismissed.
- Appeal was dismissed by the majority; Brown J.A., in dissent, would have allowed the appeal.

Case Briefing Elements (Cont'd)

Reasons

- Rules
- Application

Case Briefing Elements (Cont'd)

Ratio

- The rule of law on which the decision is based – the part of a decision that other courts must follow.
- Generally stated in one or two sentences
- Can be broadly or narrowly constructed
- Broad: We owe a duty of care to all who may be impacted by our actions
- Narrow: Beverage manufacturers owe a duty of care to potential consumers of their product.

You will work briefing cases (next week)

Be sure to read *AB v Toronto Catholic District School Board* prior to your Tutorial next week. (Also review the *Knauff v HRTO* decision.)

Tutorial: Case Briefing – Long and Short Form

Lecture: 1:30-3 pm (Online) – [Zoom Link](#)

The Development of Competence

Introduction to Analytical Skills –
Statutory Interpretation

[\(For Tutorial\)](#)

[AB v Toronto Catholic District School Board](#),
2024 HRT0 739 and 2025 HRT0 743

(For Lecture)

McGill Guide (on Westlaw)

The AI Trap (277-294)

[Kapahi Real Estate Inc v Elite Real Estate
Club of Toronto Inc](#), 2026 ONSC 1438.

McCarney Text, Chapter 4A, pages 3-7;
Chapter 5, pages 3-5; Chapter 10, pages 4-
14

Ruth Sullivan, “Statutory Interpretation in a
New Nutshell” (2003) 82:1 Can Bar Rev 51.